Ack. 6 June

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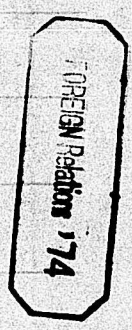


No 78

Mr Bingham

U. S. Legation, Japan.

Tokei, 24 April, 1874.



Mr Bingham
to the
Hon. Secretary of State.

Subject.

With reference to proposed expedition of Japanese Govt. to Formosa. Reply of Minister for Foreign Affs. enclosed, to the effect that the American citizens connected with the expedition and the P. M. S. S. "New York" shall be detached therefrom.

Enclosures.

1. Mr Terashima to Mr Bingham, April

April 22nd 1874.

2. Mr Bingham's reply, April 23rd.

No 78.

U. S. Legation, Japan.

Tokei, 24 April, 1874.

Sir:

Since writing my dispatch No 76, of date the 22nd inst., in relation to the Expedition to Formosa, I have received the reply of the Minister for Foreign Affairs to my communication to him on the same subject dated the 19th instant, which reply, with my answer thereto are herewith (Enclosures 1 and 2). 2/78

It is a pleasure to make mention of the prompt compliance of

The Honorable,

The Secretary of State.

of the Japanese Government with my demand that neither the American ship "New York", nor the American citizens in the employment of the Japanese Government, should be permitted to proceed with the proposed armed Expedition to Formosa without the written consent of China to the Expedition.

You will notice that this Government has sent orders forward to detach the "New York" and the citizens of the United States from the Expedition, which orders, I am assured, will reach Nagasaki before the Expedition proceeds farther.

I am of opinion that the Expedition will be abandoned; but in case China should expressly consent in writing that the High Commissioner of Japan under the protection of an armed force may proceed to Formosa to obtain from the aborigines some security against any future outrages upon Japanese seamen wrecked upon that coast, I do not see that I have any authority to forbid the employment for such purpose of American citizens, inasmuch as such service would not

not be a making a war upon a Power with which the United States are at peace; nor indeed upon any Power."

I respectfully desire full instructions upon the subject, and beg leave to again express the hope that my action thus far may meet your approval.

I am, Sir,

Your obedient servant,

Wm. H. Pinghman

No 78.

Enclosure 1.

Copy.

No 26.

The 22d of 4th Month of 7th Year of Meiji.

Your Excellency:

I have the honor to acknowledge the receipt of Your Excellency's despatch No 83 of the 19th April, 1874, informing me of your non-approval of the proceeding to Formosa of three American citizens, to wit: General Le Gendre, Lieut. Commander Cassell and Mr Watson for the present affair, who were engaged in the service of the Japanese Government, and of the employment

H E John A. Bingham
E E & M P of the
U.S.A.

employment of the United States Vessel "New York" as transport in the same service.

In reply I beg to say that in compliance with your request, instructions for the detachment of the above named citizens and vessel have already been forwarded to the proper authorities and that the necessary steps have also been taken to transmit with despatch your letters addressed to those gentlemen.

With respect and consideration,
(signed) Terashima Munenori,
H.I.J.M's Minister
for Foreign Affairs.

No 78.

Enclosure 2.

Copy.

No 35. U. S. Legation, Japan,
Tokei, 23 April, 1874.

Your Excellency:

It gives me pleasure to acknowledge the receipt of Your Excellency's despatch No 26, dated 22d instant, in reply to my despatch of the 19th instant in relation to the proposed Expedition by the Government of Japan to Formosa.

Your Excellency's Government have my thanks for so promptly recognizing the rights of the United States and ordering that neither the American

H.E. Terashima Munenori,
H.I.J.M. Minister
for Foreign Affairs.

American ship "New York"; nor the American citizens named in my despatch shall proceed with the armed expedition to Formosa, but shall be detached from that service.

I beg leave to add that while it is not the desire of my Government to interfere in the relations of Japan with other Powers, the law of the United States declares that the citizens thereof shall not enlist in the military or naval service of any Foreign Power to make war upon any Power with which the United States are at peace.

I have every assurance that Your Excellency's Government will take care that this provision of American law shall be respected by all persons in the service of Your Excellency's Government.

I am, with great respect,
Your Excellency's obt. servant
(signed.) Jno. A. Bingham.